

THE CAPTURED SCOUT.



The Project Gutenberg eBook of The Captured Scout of the Army of the James

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: The Captured Scout of the Army of the James

Author: H. Clay Trumbull

Release date: August 4, 2011 [eBook #36971]

Most recently updated: January 8, 2021

Language: English

Other information and formats: www.gutenberg.org/ebooks/36971

Credits: Produced by David E. Brown and The Online Distributed Proofreading Team at <https://www.pgdp.net> (This file was produced from images generously made available by The Internet Archive)

*** START OF THE PROJECT GUTENBERG EBOOK THE CAPTURED
SCOUT OF THE ARMY OF THE JAMES ***

THE

CAPTURED SCOUT

OF THE

ARMY OF THE JAMES.

A Sketch of the Life of

SERGEANT HENRY H. MANNING,

OF THE TWENTY-FOURTH MASS. REGIMENT.

BY

CHAPLAIN H. CLAY TRUMBULL.

BOSTON:

NICHOLS AND NOYES.

1869.

Entered according to Act of Congress in the year 1868, by
NICHOLS AND NOYES,

In the Clerk's Office of the District Court of the District of Massachusetts.

CAMBRIDGE:

PRESS OF JOHN WILSON AND SON.

TO THE SURVIVING MEMBERS
OF THE
Twenty-Fourth Regiment Massachusetts Vols.,
THIS SKETCH OF THEIR COMRADE IS AFFECTIONATELY
DEDICATED,
BY ONE WHO HOLDS IN EVER FRESH AND DELIGHTFUL
REMEMBRANCE HIS THREE YEARS' EXPERIENCE
AS THEIR BRIGADE COMPANION,
AND
HIS MINISTRY AS THEIR OCCASIONAL CHAPLAIN.

NOTE.

This little sketch is the best, because the only, tribute to the memory of its subject that the writer, amid the pressure of varied duties, can find time to render.

Prepared, in great part, for use in a memorial discourse, it has not been rewritten, although extended by additions which perhaps mar the harmony of its first design.

The fact that it was shaped to be spoken rather than to be read,—designed for the ear rather than for the eye,—will account, to those accustomed to public address, for some of its unsuitableness of style for the form in which it now appears.

H. C. T.

CONTENTS.

The Dead of the Army of the James	<u>9</u>
Cost of the Slaveholders' War	<u>10</u>
A Massachusetts Boy.—Foreshadowings of a noble Life	<u>13</u>
The Soldier of Christ and Country	<u>14</u>
A good Regiment.—A good Record	<u>16</u>
Fighting and Praying	<u>17</u>
James Island.—Hospital Supply of Rebel Shells	<u>19</u>
Charleston Siege-work.—Sharpshooting	<u>20</u>
The Veterans.—Love for the old Flag	<u>22</u>
Campaigns in Virginia.—Volunteers as a Scout	<u>24</u>
The Capture.—The Dungeon.—The Gallows	<u>27</u>
Gloom of the Stockade and Jail.—Consecration Vow	<u>29</u>
Escape and Recapture.—Torn by Blood-hounds	<u>31</u>
Andersonville Horrors	<u>34</u>
In the Rebel Ranks.—Loyal still	<u>35</u>
A Prisoner among Friends.—Good News for Home	<u>37</u>
Again with his Regiment.—Merited Promotion	<u>38</u>
Home at last	<u>39</u>
Telling his Story.—Fulfilling his Vow	<u>40</u>
Student-life at Andover.—Loving Service for Jesus	<u>41</u>
Toil for Bread.—Unfailing Trust	<u>43</u>
Failing Health.—A Grateful Heart	<u>47</u>
In Hospital.—Gentle Ministry there	<u>48</u>

Hope against Hope.—The Privilege of Christian Work [53](#)

Only Waiting.—Rest at last [55](#)

Claims of the Dead on the Living [58](#)



THE CAPTURED SCOUT OF THE ARMY OF THE JAMES.

THE DEAD OF THE ARMY OF THE JAMES.



ON the evening of Wednesday, Sept. 2, 1868, some two hundred ex-officers of the "Army of the James" were assembled in the dining-hall of the St. James Hotel, Boston, in delightful re-union, as comrades of camp and campaigning. The writer of this little sketch was called on to say words in tribute to "The memory of the honored dead" of that army, and in consequence the tenderest recollections were revived of those who fell in the long years of war with rebellion.

Hardly had the writer reached his home from that re-union, before word came to him of the death of another soldier of the Army of the James; one whose varied and thrilling experiences, peculiar services to the Union cause, and noble Christian character entitled him to special mention, as a noteworthy and satisfactory illustration of the bravery and worth of the

enlisted men of that army. While on his death-bed, this young soldier had sent particular request to one who, as an army chaplain in his brigade, had known something of his personal character and history, to preach a commemorative discourse on the occasion of his decease. Thus called on again to pay just tribute to the memory of the dead of the Army of the James, the writer prepared this sketch as part of a sermon preached at Warwick, Mass., Sept. 13, 1868, and now gives it to the public at the request of those who, knowing something of the young soldier's history, naturally desire to know more.

COST OF THE SLAVEHOLDERS' WAR.

Others than his immediate comrades have reasons for an interest in this young soldier, and should join in honoring his memory, and recalling at his death the record of his army life. Dying though he did among the green hills of Massachusetts, in these days of palmy peace, with parents and sisters ministering to his comfort, as he wasted slowly before their loving gaze, he was really one of the dead of the war, one of the starved of Andersonville. His vigorous constitution was broken down under the malarial damps of the sea-island death-swamps, beneath the smiting sun-glare of the Carolina sands, in the fatigues of dreary marches and anxious picket service, and amid the excitements of battle and the crushing responsibilities of a mission of imminent peril within the lines of the enemy. His young life was really worn away, not here at the North, but there at the South, in dragging months of imprisonment, in teeming hours of attempted escape, in rapid flight from the swift pursuers, and in the death-clutch with the fierce-fanged hounds in the swamp of despair!

And he was but one of many,—a representative youth; one out of thirteen thousand martyrs of Andersonville,—

"The men who perished in swamp and fen,
The slowly starved of the prison pen;"—

a solitary soldier among fully three hundred thousand who gave their lives for the nation's life, the sodden mounds of whose graves, like an encircling

earthwork, make secure that nation's proud though dearly-bought position among the kingdoms of the world. Surely, there is little danger that the story of such a man will be told too widely, or his services be too highly esteemed; small cause for fear, that, in the glad days of rest from war, there will be too vividly recalled those dark hours of the imperilled republic, when the bared right arms of two and a half millions of loyal and loving Union soldiers and sailors were essential to the preservation of a free and righteous government; and not only each blood-drop shed by those who stood or fell in battle for their country, but every heart-throb of their suffering or toil, and every tear of those who loved them, counted on the ransom of Liberty, and helped—

"To make, for children yet to come,
This land of their bequeathing,
The imperial and the peerless home
Of happiest beings breathing."

A MASSACHUSETTS BOY.— FORESHADOWINGS OF A NOBLE LIFE.

Henry Hatch Manning was born in Warwick, Mass., May 17, 1844. He was ever a loving and dutiful son and brother. Just before his death, his mother remarked, "I cannot now recall any act of his disobedience."—"Our brightest earthly hopes will perish with him," added his sister. When young, his frequent wish was that he had been the eldest child, so as to lift burdens his sisters now must bear. At eight years old, he was at work for a neighbor, earning something beyond his board. While thus occupied, he was startled by the sudden death of his employer by accident. Hurrying to his home, he whispered the sad story to his mother, adding in almost the same breath, "But don't tell father. He wouldn't let me go back; and what would Mrs. Holmes do without me?" Thus early he showed his independence of character, and his desire to live for others.

Having the ordinary common-school advantages of a Massachusetts town,—such as are now, thank God! extended into regions whither they won an entrance by blood,—Henry Manning improved them well. He had,

moreover, faithful home instruction; and the influence of a Christian mother's prayerful teachings followed him like a continual benediction. When about sixteen years old, while at work in another town from this, in a season of spiritual declension and coldness there, he was drawn by God's Spirit to make a full surrender of himself to Jesus. Evil influences were around him just then: a sneering scoffer sought persistently to dissuade him from his new-formed purpose; but God was with him, and he witnessed faithfully for Christ. Others followed his example, and a precious revival of God's Spirit-work followed in that long cold and formal community.

THE SOLDIER OF CHRIST AND COUNTRY.

It was soon after this that the echo of rebel guns against Fort Sumter aroused the New-England sons of Revolutionary patriots to the perils of the nationality their fathers had founded in blood. Henry Manning was not yet seventeen when the old flag was dishonored in Charleston Harbor; but he was old enough to realize his country's need, and patriotic enough to stake every thing in her defence. His heart, warm with new love for the Saviour who died for him, throbbed to evidence its affection in some sacrifice for a cause approved of God. Delayed somewhat in his original plans, he enlisted, in the early autumn of 1861, as a private in the Twenty-fourth Massachusetts Regiment, then forming near Boston, under the gallant and lamented Stevenson.

After his enlistment, on the Sabbath before he left for the war, he stood up alone in his home-church, and made public profession of his new faith, and was there enrolled as a follower of Jesus; his pastor preaching an appropriate sermon from the text, "Thou therefore endure hardness, as a good soldier of Jesus Christ;" which inspired counsel Manning certainly followed to the letter. Going out thence, clad in the "whole armor of God," Manning commenced his career as a soldier of the cross and his country, and thenceforward followed unflinchingly the flag of his government and the blood-stained banner of Jesus.

A GOOD REGIMENT.—A GOOD RECORD.

The Twenty-fourth Massachusetts was a noble battalion, with a glorious record. Through its four years of service, its well-earned reputation for good discipline, thorough drill, and staunch courage was unsurpassed; and few regiments were its equals in hard fighting and practical efficiency. It would be enough for any man's soldierly reputation that he stood well in that regiment; for he who won honor there deserved it everywhere. Hence the good name there secured by Henry Manning shows his personal worth, and indicates the value of his services. Said Col. Ordway, at the close of Manning's term of service, "I have known his whole course since he has been a soldier.... He has always been a brave, faithful, truthful, soldier, ... honest and temperate, and in every way to be trusted." Maj. Edmands added, "I can cheerfully say, that I have never known a braver man in the regiment—and I was formerly his captain. He is, I believe, competent to fill any position where fidelity, integrity, and energy are required." Adjutant Stoddard also testified, "[He] has always been especially noticed for the efficient manner in which he has performed his duties as a soldier: always ready for any daring undertaking, he has won for himself a place in the hearts of the officers and his comrades of the Twenty-fourth Massachusetts; and his name can never be obliterated from the pages of the history of that regiment."

FIGHTING AND PRAYING.

The Twenty-fourth went out in the Burnside expedition to the waters of North Carolina, and, passing the perils of Hatteras "Swash," had an honorable and distinguished part, under brave and beloved Gen. John G. Foster, in the battles of Roanoke, Newbern, Little Washington, Rahl's Mills, Kinston, Whitehall, and Goldsboro'. In all this service, Manning gained in manliness and in the Christian graces, under the developing influences of active army life. At Kinston he had a narrow escape from death. A bullet struck the rail of a fence, behind which he was stationed as a sharpshooter, just in range of his head; a knot turned it aside so that it barely passed his cheek, scattering the splinters in his eyes.

In the spring and early summer of 1863, the Twenty-fourth was in South Carolina, passing months on the sickly sea-islands, where it was said no

white man had before lived at that season of the year. It was there that the writer of this sketch—then chaplain of another regiment in the same brigade—first met young Manning. His regiment then having no chaplain, he was one of an association of earnest Christians who had banded together to keep up religious meetings, and to do good as they had opportunity, among their fellows. Under their rustic canopy of boughs, beneath the grand old live oaks, and amid the stately palms of Seabrook Island, were enjoyed never-to-be-forgotten hours of prayer and praise.

JAMES ISLAND.—HOSPITAL SUPPLY OF REBEL SHELLS.

From Seabrook to James Island, the Twenty-fourth moved, in July, 1863, under Gen. Terry, in co-operation with Gen. Gillmore's advance on Morris Island. Stricken down with sunstroke there, his whole system prostrate under repeated attacks of fever and chills, fastened on him in the malarial regions of his recent service, Manning lay sick in the rude regimental hospital on the morning of July 16, when the enemy in force made a sudden attack on the Union lines. The shock of this battle was bravely met by Col. Shaw's Fifty-fourth Massachusetts regiment, then first in action. The hospital of the Twenty-fourth was found to be in the focus of the enemy's sharpest fire, and a hurried move was ordered down the island. As the poor invalids, with failing limbs, dragged their tedious way to the beach, shell after shell from the enemy's guns came shrieking past, or bursting among them. One such seemed to explode in Manning's very face, and he fell, with the half conviction that it had killed him. As he rose again to his feet, another burst above him, and a ragged fragment of the hot iron tore down along his very side, laying open his clothing, and bruising and lacerating his arm. But this injury probably saved him from a severer; for, checked by it a moment, he saw yet another shell explode directly before him, in the group he had fallen behind, killing and wounding not a few of that number. Sorry comfort, this, for sick soldiers! Yet such was but an incident in the trying army service of our Union soldiers, in the prolonged war with rebellion.

CHARLESTON SIEGE-WORK.— SHARPSHOOTING.

Immediately after the fight at James Island, the Twenty-fourth passed over to Morris Island, to have a part in the operations against Charleston from that point, commencing with that terrible assault on Fort Wagner in which Col. Shaw lost his life,—when Gen. Stevenson's brigade (including the Twenty-fourth) was in reserve, holding the front after the sad repulse. There, Manning was again stricken down with sunstroke. Later, he was assigned to a company of sharpshooters in active service at the extreme front. He then had narrow escapes daily. On one occasion, as he and a comrade were alternating in rifle firing through a loop-hole, he had thrown himself down to rest under his rubber blanket, raised for a shade, when a bullet wounded his comrade in the face; as he sprang up to aid him, a huge fragment of a mortar shell came tearing down through the air, and crushed the rubber blanket into the ground on the very spot where Manning had lain. Those were toilsome days on Morris Island, in the slow dragging siege; men who were there will not soon forget its shifting sands, its blazing sunlight, its unintermitted fire of artillery and musketry, its labors on traverse and parallel and sap, its frequent struggles of sortie or assault, and its atmosphere laden with disease:

"How they marched together, sound or sick,
Sank in the trench o'er the heavy spade!
How they charged on the guns at double-quick,
Kept ranks for Death to choose and to pick,
And lay on the beds no fair hands made!"

The Twenty-fourth sweltered and toiled with the other regiments, and won for itself a proud name by its brilliant charge on the rifle-pits in the very face of Wagner's guns. Thence it passed down the coast to Florida, and had a little rest in the quaint old Spanish city of St. Augustine.

VETERAN RE-ENLISTMENTS.—LOVE FOR THE OLD FLAG.

It was while the regiment was at St. Augustine that the call came from the government for the re-enlistment of its veteran soldiers. It did not take Henry Manning much longer to make up his mind to a second enlistment than it did to the first. Had he been wanted for thirty or fifty years, instead of three or five, he would doubtless have been ready. God be praised that such boys lived, and were willing to die, in the hour of our country's need!

A little incident, occurring as the veterans of the Twenty-fourth left St. Augustine, on the furlough granted them as a consideration of re-enlistment, well illustrated the character and spirit of the soldiers of the war. They were gathered about the head of the dock, just ready to embark for the North, to leave soldier-life for a while behind them. Their thoughts were naturally of their release from service, and of the homes and loved ones to which they were hastening. Their comrades, who were to remain behind, had assembled to see them off: citizens of the old town were also there; and all was glad-hearted cheerfulness. But unexpectedly to nearly all, as they stood thus together, the regimental colors were brought down from Fort Marion, to be taken with them to the North. As the dear old flag came in sight,—the bullet-rent and storm-worn colors which they had followed unflinchingly on the weary march and in the battle's crash, and for which so many whom they loved had died,—instinctively, as by the word of command, every voice was hushed; every farewell stayed; and the soldier group parted and fell back on either hand, in reverent, affectionate regard for that symbol of all that they lived for then; and, as through the open ranks the loved flag was borne down the pier to the steamer's deck,—

"Every foot was quiet,
Every head was bare;
The soft trade-wind was lifting
A hundred locks of hair;"

while tearful eyes, in bronzed and manly faces bore precious testimony to the patriotism and generous devotion of those brave and tender-hearted soldiers. It was with such men and in that spirit that Henry Manning came home, in the spring of 1864, on his veteran furlough.

CAMPAIGNS IT IN VIRGINIA.—VOLUNTEERS AS A SCOUT.

Rejoining his regiment at Gloucester Point, Va., he was in Gen. Butler's expedition up the James River, towards Drewry's Bluff. Early in June, while the Army of the James was shut in the peninsula at Bermuda Hundred, Gen. Butler called for a volunteer scout—or quasi spy—to venture within the enemy's lines, and bring back information of his position and numbers. This call found a ready response in Manning's heart, and he volunteered for the undertaking. He found, as he said in writing to his home of his determination, peculiar satisfaction in the thought that he could now be of real service to the cause he loved. On the vedette-post, in the rifle-pit, or on the battle-line, he must stand or fall as one man, doing only what any lad might compass; but in this new mission, all his nervous energy and cautious shrewdness and consecrated purpose would tell in an effort worthy of a soldier, whether that effort brought success or failure. As expressive of his feelings, he enclosed to his friends the following lines he had clipped from some paper:—

"We must forget all feelings save the *one*;
We must resign all passions save our purpose;
We must behold no object save OUR COUNTRY,
And only look on death as beautiful,
So that the sacrifice ascend to heaven
And draw down freedom on her evermore."

It requires not a little moral courage and true nerve to deliberately leave one's military lines in the face of the enemy, and pass over into the encircling forces of the foe. But Henry Manning had counted the cost of his undertaking; and late on the evening of June 7, 1864, he glided stealthily down the steep right bank of the river James, and along the water's edge in the shade of the heavy foliage, until he had passed the rebel picket in front of the famous "Howlett Battery;" then cautiously, and with bated breath, he crept up the bank, and was within the enemy's intrenchments. Bayonets glistened, lights flashed, voices hummed about him: he was everywhere surrounded by sights and sounds of life, but he saw never a friendly look, heard never a friendly note.

"He hears the rustling flag,
And the armed sentry's tramp;
And the starlight and moonlight
His silent wanderings lamp.

With slow tread and still tread,
He scans the tented line;
And he counts the battery guns
By the gaunt and shadowy pine;
And his slow tread and still tread
Give no warning sound."

Carefully making his observations, he passed from point to point up and down the intrenchment lines, out to the Richmond pike, and beyond to the Petersburg railroad. Concealing himself during the day, he scouted again on the second night. The defences of the enemy were noted, with the general disposition and number of the troops. Long after this he wrote, "[I was] in possession of such valuable information that if I could only have got back with it, all the time, treasure, and blood which have been spent before Petersburg would have been spared. It could have been captured then with very small loss." But the attempt to regain the Union lines must be postponed until the following night, now that the dawn of the second day found him far from his starting point; so, seeking a secluded spot in the forest, near Chester Station, he concealed himself in its cover, and was soon fast asleep.

THE CAPTURE.—THE DUNGEON.—THE GALLOWS.

Awaking after a few hours, he heard the unexpected murmur of voices near him. A change of position had been made by some of the troops, and he was surrounded by the enemy. He hardly moved before he was discovered.

"A sharp clang, a steel clang!
And terror in the sound;

For the sentry, falcon-eyed,
In the camp a spy hath found:
With a sharp clang, a steel clang,
The patriot is bound."

As a prisoner he was hurried before Brig.-Gen. Johnson, and by him sent forward to Gen. Beauregard's headquarters. The order to him from Gen. Butler, being found on his person, gave color to the charge that he was an authorized spy; and the first proposition was to hang him at once to a tree. Indeed, he was told that his body should swing before sundown. But from some reason it was decided to try him by formal court-martial; and he was sent to Petersburg, where he was shut in a vile hole, underneath the jail, "a low, filthy dungeon," as he described it, "dark, gloomy, and crawling with vermin." Those who have never been prisoners of war under special charges, in the gloom of solitary confinement, with the staring gallows threatened, cannot fully realize the terribleness of Henry Manning's struggle of mind during that first night in the Petersburg dungeon. Earnestly did he call on God for strength, that, if he must yield his young life thus and then, he might be faithful even unto such a death. And God sustained him.

GLOOM OF THE STOCKADE AND JAIL.

"I will lift up mine eyes to the hills."

Manning was sent to Georgia for trial. By mistake he was carried with a party to Andersonville, and turned into that place of yet untold horrors; but thither, after seven days, he was tracked out by the authorities, and to them turned over by the brutal Capt. Wirz, who, at parting, shook his clenched fist in his face, and cursed him vehemently as "one of Butler's spies," disgracing that foul stockade by his temporary presence. Thence to Macon, he was shut in a felon's cell in the common jail. There the days dragged heavily, while he lacked air, exercise, fitting food, hope. He pined away until it seemed as if he could not live. "I heard it whispered around, many a time," he wrote afterwards, "'Poor Manning! What a pity that he must die in such a place as this. Poor boy! he's past recovery.'" It was while shut in there, anticipating trial, conviction, death, that Manning cast himself before the Lord, and cried

mightily for help. On his knees, behind the grated door of his hope-barred cell, he pleaded that he might yet have life and again find liberty. Although in intense and agonized earnestness, he yet prayed in trustful submission to God's righteous will; and, in no mere selfish love of ease and safety, solemnly he promised there that if his life was spared, it should be given wholly and heartily to the service of Jesus. In relating this incident after his release, he added artlessly, "I told God that if my life was spared, I should know *He* did it, for there was no other hope for me, then." That prayer and that vow seemed to be favorably heard of God. An alarm from an anticipated attack startled the authorities at Macon; the provost-marshal of the post was ordered on active duty; in the transfer of authorities, the charges against Manning were lost, and in consequence his court-martial trial did not take place. But his personal trials were by no means at an end. His tedious prison-life had barely commenced.

ESCAPE AND RECAPTURE.—TORN BY BLOOD-HOUNDS.

With some of his fellow-prisoners he made several attempts at escape: once he was actually outside the jail, but was soon retaken. From the jail he was removed to the Macon stockade. Digging out thence, he was making his way towards our lines at Atlanta,—travelling only nights, resting in the woods by day,—when he was caught by a rebel scout, and returned to his prison quarters. From Macon he was taken to Millen, to be guarded in the stockade at Camp Lawton. Returned to Macon, he was ordered thence again to Andersonville. Shrinking from the horrors of that well-remembered pen, he was willing to risk every thing in another attempt at escape on his way thither. Going by rail, he determined to jump from the moving train; and, as several who had thus jumped with the cars in slow motion had been shot down by the guard, he made up his mind to leap while the train was at highest speed. On a down grade, he made the fearful plunge, and, as though by a miracle, he rolled unharmed down the embankment and into the ditch below. Quick as thought he was up and off for the woods. How pure and free seemed the fresh air of heaven! God speed and shield the flying boy! At the next station, the guard of the train gave the alarm, and soon a pack of five blood-hounds, with their mounted brutal keepers, were on his track, and in

full pursuit. Bravely but vainly Manning sought to retain the freedom he had won at such fearful risk. Plunging into the recesses of a dismal swamp, he had brief hope that he should evade his pursuers; but soon the baying of the hounds was in his strained ears, and about him were the ringing echoes of the on-spurring guard. His hiding-place was speedily surrounded, and his hope of escape cut off. Yet he clung to dear liberty to the last. Again and again came the blaspheming shouts of his pursuers, demanding his surrender, and threatening him with "no quarter" if he compelled them to push further through the entangling briers and slimy morasses. He waded out into the sluggish waters of the inner swamp depths, to turn if possible the trail of the keen-scented hounds; but with undeviating directness they bounded towards him through brake and fen: he heard their labored breathing; then caught a glimpse of their flashing eyes and foaming jaws, as, with a vindictive howl at their long-delayed triumph, they leaped ferociously out of the thicket into the water where he stood, firm in despair. "Oh! 'twas a horrid moment," he said, "when they caught me and made a spring for my throat. I sank in the mire: a gurgling sound filled my ears—" One hound clutched him by the shoulder as he fell in the water: another sent his sharp fangs through the flesh of his side. As he rolled in the deadly struggle, the keepers came up and choked off the dogs, although one of them was urgent to have him torn in pieces because of his temerity. Weak, bruised, bleeding, despondent, Manning was carried to the Andersonville stockade, there to have his only nursing at the hands of the keepers of that accursed den, amid its exposures, its privations, its gloom, and its loathsomeness.

ANDERSONVILLE HORRORS.

Oh, how wearily the hours dragged in Andersonville! Shivering, unsheltered, in the cold nights of rain; sweltering, all exposed, under the noonday's sun; cramped in the seething mass of the close-packed stockade, where half-naked men strove with each other for the last garment from the body of their latest dead comrade; weighed down with the poison-laden air of the malarial swamp; knowing no relief from the gnawings of hunger in the soul-straining processes of slow starvation; needing Christian courage to hold back from the relief of the dead-line; full of sad forebodings of evil to home loved ones who mourned him as dead, and from whom no comforting word could come;

and chafing, most of all, in his overwrought and high-strung nervous powers, under enforced inaction at a time when every patriot's strength should tell for God and Government,—Manning's life wasted surely away, and his system imbibed fairly that disease which at length destroyed his firm and vigorous constitution, and brought him so early in life's day to the house appointed to all living.

IN THE REBEL RANKS.—LOYAL STILL.

Finding himself still held as a suspected spy, although the special charges against him had been lost, and denied the treatment of an ordinary prisoner of war, Manning prayerfully determined on a course he would not have counselled for one captured in open battle. The special orders from his department commander clearly authorized such a proceeding in his case, and he sought to find a temporary place in the rebel ranks, that he might escape to the Union lines with the valuable information he had in various ways obtained. Circumstances providentially favored him, and he adroitly managed to pass out with a squad who had regularly enlisted; and, without taking any oath of allegiance to the "Confederate" powers, he was counted and equipped as a soldier in that army, and hurried towards the rebel front. However any might question the propriety or policy of this movement on his part, it cannot be denied that in it he acted conscientiously, and verily felt he was doing God service. He was acting for his government, to which he was loyal as ever, and was carrying out the very letter and spirit of his specific instructions. "I gained all the information I could, from every thing that passed," he wrote, "and laid it up in my memory. When I saw a big bridge, I studied how I might blow it up; when I passed a large city, I was planning how I might set it on fire; and when I saw a leading general, I was contriving some way how I might blow his brains out. I was in the enemy's country,—nothing but enemies around me; and the more harm I could do them, the greater service I should be doing my country." It was not long before the Union cavalry made a dash on the rebel lines in Manning's vicinity. At once he ran for the battle-line of the assailing force, facing its sharpest fire, while also fired at by his rebel comrades who divined the object of his move; and he reached the Union ranks unharmed.

A PRISONER AMONG FRIENDS.—GOOD NEWS FOR HOME.

Once more under the old flag, Manning told his strange story to the commander before whom he was taken; but it is not to be wondered at that it was discredited, in the absence of proof. He was deemed a rebel prisoner, and as such was sent to the military prison at Alton, Illinois. Sending forward his complaint to his regiment, he was, after a few weeks' delay, ordered released by direct command from the War Department. It was then—for he would not write to his dear ones while a prisoner at Alton—that he sent his first letter home. The simple message,—

"ST. LOUIS, MO. March 10, 1865.

"MY DEAR LOVED ONES,—

"I still live, and you shall hear from me soon.

"HENRY H. MANNING."

written on a sheet of "Christian Commission" paper, with the appropriate printed motto, "Let it hasten to those who wait for tidings,"—came as a voice from the grave to those who had mourned him, and gave to them glad and grateful hearts; for now their dead was alive again, and their lost was found.

AGAIN WITH HIS REGIMENT.—MERITED PROMOTION.

Subjected, on his way to his regiment, to those vexatious arrests and detentions to which an enlisted man absent from his command without a "descriptive list" was liable, in war time, Manning at length rejoined his comrades of the Twenty-fourth, at Richmond, Va., where the regiment was doing provost duty, about the middle of April, 1865. The ten months intervening since he left his command, not a dozen miles from where he now rejoined it, had been teeming ones to the gallant and war-worn battalion in

its varied campaigning, as well as to himself within the enemy's lines. He missed many a comrade who had fallen in the fight while he suffered in the hands of the foe. But they were hearty greetings that passed between those who at last thus met in safety and dear-bought peace.

The following regimental order shows something of the estimate put on his services by his immediate commander:—

HEADQUARTERS 24th Mass. Vol. Inf.
RICHMOND, VA., April 22, 1865.

SPECIAL ORDER No. 34.

Corporal H. H. Manning, Co. G, is hereby promoted to be sergeant in the same company, as a special commendation for the services rendered by him.

Captured within the lines of the enemy while on secret service, and arraigned for trial as a spy, Sergeant Manning passed through a series of dangerous adventures, sufficient to shake the firmest resolution. Throughout his captivity he displayed a courage and constancy to duty which deserve a greater reward than his commanding officer has power to bestow.

By order of
ALBERT ORDWAY,
Lieut.-Col. 24th Mass. Vol. Inf. Comd'g Regt.

BENJ. F. STODDARD,
1st Lieut. and Adj.

HOME AT LAST.

Manning was too far reduced by his prison life to be of further use in the army; moreover, active campaigning was at an end; and he was honorably

discharged, June 16, 1865, after nearly four years of such service as few even of the Union soldiers in the late war were called to. Returning to his Massachusetts home, his first effort was to rebuild his health. A visit to the West refreshed him, and he hoped for ultimate recovery. Investing his army earnings for the benefit of his home loved ones, he looked about him for something to do. He had not forgotten his promise to God in Macon jail: his only doubt was how he could best redeem it.

TELLING HIS STORY.—FULFILLING HIS VOW.

Visiting an army comrade in North Bridgewater, Manning met the Rev. S. H. Lee, now of Greenfield, who counselled him to attempt studying for the ministry; and, that he might procure funds to start with, Mr. Lee suggested his preparing a lecture on his army service and prison adventures, to deliver as opportunity offered, until the proceeds of it should amount to one hundred dollars, when he could hopefully commence school-life, and thenceforward work his way along through a course of study. The lecture was prepared, and, under Mr. Lee's auspices, brought out at North Bridgewater. It was repeated a score of times or so, during the winter of 1865-6, with good success. It is much to be regretted that no copy of this manuscript was retained; for Manning wrote with no little graphic power, and such a record of his eventful soldier-life would have proved of thrilling interest now.

STUDENT-LIFE AT ANDOVER.—LOVING SERVICE FOR JESUS.

In the spring of 1866, he was on his way to Phillips Academy, Andover, with the one hundred dollars in hand,—or rather with one hundred and one dollars; and, as he had been advised to start with one hundred, he gave the odd dollar to a poor man on the road. At Andover, while an earnest student, he was an untiring Christian worker. He taught in a mission-school, took part in prayer-meetings, and conversed on the subject of personal religion with many school-mates, winning thus friends to himself and souls to Jesus. His life really seemed—as he had promised it should be—wholly consecrate to

Jesus. "Way down in the inmost recesses of my heart," he wrote, "the great all-absorbing purpose and desire is to do the will of God as it is made known to me by his providence.... I desire to be led by the hand of God.... I wish to do away with every selfish thought, and live only for Jesus." Yet he worked from no mere sense of stern duty, in the slavish performance of a binding vow: love prompted his service, out of a willing heart. "How much real enjoyment it gives me to work for Jesus!" he said. "All other pleasures fade away and are lost, by the side of it." And this enjoyment in work for Jesus was increased by the conviction that souls were benefited by it. He loved to work for others, because Jesus commanded it; and he loved to work for Jesus, because others were blessed by it. "You know," he said, "the words of our Saviour are, 'Inasmuch as ye have done it unto one of the least of these my brethren, ye have done it unto me.' How soothing and encouraging these words are! I don't see how any one can help doing all the good they can.... I have an insatiable thirst after perishing souls, and hope and pray that God will lead me to do good wherever I am.... I am thankful for the hope that, perhaps ere long, I can throw aside all other things, and enter with my whole heart upon the work of saving souls.... My heart pants to be wholly engaged in my Master's service."

TOIL FOR BREAD.—UNFAILING TRUST.

One hundred dollars will not go far towards a young man's thorough education, nowadays; and Manning found himself before long pressed for means of support. Then he was driven to work hard for money, while toiling incessantly at study. He swept the school-rooms, and performed similar service at the academy, for fifteen cents an hour; he went out in the early mornings to do mowing and other farm labor, until the hour of school-time; and thus he kept along in every thing but health and rest. He had no odd hours unimproved. Writing of his mission-scholars, in whom he was deeply interested, he said, "I generally spend two evenings a week with them, and two evenings at literary societies for improvement of the mind, and there are not often but three evenings left, and those are our prayer-meeting nights."

Had Manning been in full health, he might have stood all this; but disease, fastened on him in the prison stockade, never relaxed its hold; and his

strength failed steadily. Some of his friends advised him to abandon student-life and seek renewed vigor in active out-door occupation; but others, who were nearest him, with unaccountable blindness and persistency, uniformly urged his adherence to first-formed plans. Again and again his enfeebled frame gave way; and as often his unwavering determination enabled him to rally for another effort. It was hard for him to relinquish his purpose of *activity* in Christ's service. He was far from wilful in this struggle. "I desire to be led by the hand of God," he said; "I am praying very earnestly, ... asking God to tell me what to do, and I know he will not tell me wrong.... Feeling that I am performing my mission here on earth, I take every step gladly;" but he wanted to take some step, not to stand still: it was easier for him to do any thing for Christ than to do nothing. "I will endeavor," he wrote, "to keep within bounds, and not try to strain my rope when I find I have arrived at the end of it;" but he was loath to believe there was any end to his rope. "God willing, I shall be able to do something by and by," he said, "and what shall it be?" He had the feeling that God, having accepted his consecration vow in prison, would somehow find work for him to do for Jesus, in accordance with its terms. No lesson concerning God's "kingly state" seemed so hard for him to learn as that—

"They also serve who only stand and wait."

And, doubtless, his energy, coupled with his faith, prolonged his useful life. In his condition, and with his temperament, he would have fallen sooner but for his indomitable will, his determination not yet to yield to the closing pressure of disease, and his conviction that God would still sustain him in his work; that so long as he did what he could and should, his Father would supply all lack. It is, unquestionably, every man's duty to consider his health, even in the prosecution of a religious enterprise, and no desire for high and holy attainment will justify reckless over-effort of body or mind. But not all are to be judged by the same standard of prudence in amount or kinds of effort or toil. What is rest for one man would prove torture to another. Not a few depend for very life upon tireless activity; like the traveller on the Alps, if in their exhaustion they sit down at the approach of night, they chill and sleep and die. They must keep moving or perish. So in the case of Henry Manning: while his example of unintermitted nervous endeavor may not be commended to ordinary men for imitation, it may be admired and approved in him, doomed as he was to an early death from the hour he entered the

Petersburg dungeon, and kept alive through his resolute activity, his overestimate of remaining strength, and his ever sanguine anticipations of returning health.

And with all his weakness of body, his faith never faltered. "If God wants me to stay at school," he said while at Andover, "I have no fear but that he will find a way for me to get along there." Then he told of his rising one morning without a cent of money in the world, and going earnestly to God in prayer for help, and of his finding, but a few minutes later, between the pages of the book he took up to study, fifteen dollars (which God had put it into the heart of some friend to give to him in that delicate way); and he added, in affirmation of his undoubting faith, "And God will do so again if it is best."

FAILING HEALTH.—A GRATEFUL HEART.

It was in the spring of 1867, that Manning finally left his studies. He struggled manfully with disease, but it gained on him steadily. He visited among friends, to try change of air and scene, and was under various medical treatment, but all to little purpose. His prison privations were working out in his shattered constitution their inevitable result. For all attention shown or aid rendered him, he was ever grateful, and he seemed to feel that none had better friends than he. Of a pleasant home where he had passed a brief time, he wrote, "It's a second paradise: isn't it? If Christ was on earth now, I do believe that he would make his home there—a part of the time at least: don't you?"

Those who were privileged to assist him from time to time may surely feel, as he felt, that their gifts were unto the Lord. "I want assistance," he wrote on this point, once, "only that I may be useful; and, strictly speaking, I want to be useful only for Jesus!" To God he gave glory for whatever help came to him from any direction. Returning thanks for a generous donation—which proved most timely—from one who sent it as "a cup of cold water to a disciple," he said, feelingly, "How very strange and mysterious are the Lord's dealings with this poor weak child of his! Every earthly prop is struck from under me, and I am just sinking in utter hopeless despair, when the Lord not

only succors and relieves me, but catches me right up in his arms, and gives me such blessings as I had no thought of asking for."

IN HOSPITAL.—GENTLE MINISTRY THERE.

In his health-seeking, Manning visited Boston to secure the valued counsel of Dr. S. A. Green, his former regimental surgeon, who had on many occasions shown special interest in him, and expressed a readiness to aid him to the utmost. Soon there came a letter from him, dated in the Massachusetts General Hospital, saying, "My health has been growing frailer of late, and yesterday I came to this city, hoping to see Dr. Green, and perhaps get into some hospital; but on arriving here I found that Dr. G. was in Europe!... So, with an earnest prayer on my lips, I turned back, and, after much difficulty, found my way to this place,—found the head of the institution, and told my story—simple and short! Out of health, out of money, and disappointed about meeting friends.

"Well, I was told that this was just the place for folks in such a condition, and I was hustled into a warm bath, and into Ward 23, among a set of ghastly, half-in-the-grave looking fellows, some of whom lay, or sat up, in bed, like marble posts; some were cracking vulgar jokes, and one or two of the most deathly-looking ones were cursing and grumbling because they could not be allowed a pint of whiskey a day.... Perhaps I am wrong, but I can't help feeling grieved, mortified, and sad to come here so like a beggar! but what could I do? Here I've been on expense, more or less, ever since I left school, and no way of getting money. I have parted with my watch, and expect to receive ten or fifteen dollars for that shortly; so I shall get on nicely, only it galls me to have to be in this situation here! but I hope I shall not be here long.... And if I can get my health again, I shall know how to prize it; and shall be as thankful to God as I was when released from prison."

He was as unselfish in hospital as elsewhere. Having a little money left with him by friends, for the purchase of such comforts as he might crave, he at once set about ministering to the needs of those about him in the different wards, finding it ever "more blessed to give than to receive."

"Perhaps it may be gratifying to you," he wrote, in returning thanks for kindness shown to him by a slight gift, "to know of some of the effects of that kindness; of some of the good it has brought about, and some of the hearts it has cheered. That poor, deformed, ghastly-looking boy that I pointed out to you while we were conversing together in the hospital, wanted many things that were not furnished him. I expended a little of that money that you left with me upon him, ... and it would send a thrill of pleasure through and through you to have noted the effect. He was so unused to kindness that it quite overcame him. Poor, dear fellow! He is not long for this world. May the Lord watch over him, and prepare him for the future!

"And then there was a poor Irish girl in one of the wards, a Catholic, but one of the most devoted Christian girls I ever met.... Her home is in Ireland; but while visiting in this country, she met with a fearful accident, and was sent to the hospital for treatment. When I met her she was recovering, but was feeling somewhat disheartened because her friends were so far away; and she was often slighted on account of her being an 'Irish Catholic.'... I was enabled to cheer her up a great deal, and to do one or two little substantial acts of kindness for her, which went directly to her heart, and seemed to do her so much good that I thanked God, involuntarily, for the opportunity of cheering her, and being of service to her.

"But I was enabled to render the most assistance to an American lady,—a noble-hearted woman and a true Christian. Her life has been one of adventure and suffering, and one cannot listen to the recital of her touching story without feeling deeply interested in her. She has been in the hospital a long time, and is at present very weak and frail; and there is a great deal of doubt about her ever being any better. I bought little things for her that I knew did her good; and when I came away I left a very little money with her, in order that she might be able to procure any little thing that she felt as if she couldn't do without, even if the hospital did not furnish it. And so I had the pleasure of leaving her quite light-hearted and hopeful, believing more firmly than ever that the Lord would care for her, and never, never forsake her."

It was indeed a privilege to give assistance in any way to one so grateful as was Manning, for all that he received of blessing, and so ready to make others happy by ministering discreetly, and in a loving, Christ-like spirit, to the needy and heavy-burdened about him.

HOPE AGAINST HOPE.—THE PRIVILEGE OF CHRISTIAN WORK.

From the hospital to his home, and again among friends who felt that his presence with them was in itself a blessing, Manning still sought health, while growing gradually weaker and less able to exert himself in body or mind. He would not see the dark side of his case, but still confidently hoped for recovery. "I don't feel natural yet, by any means," he wrote from Fiskdale, where he was with good friends on a farm, in October, 1867, "nor free from mental weakness, but I'm stronger physically than I have been since I left Andover, certain. You see we are a mile and a half from neighbors, and my friends are very quiet indeed, so I talk hardly any; and when I get to work husking corn, digging potatoes, and the like, I often even forget to *think*, and I gain by it rapidly; but when I come down to writing letters, it puts me back."

Manning's days of struggle with disease were not wholly profitless to others. He was the means of not a little good, in his moving from point to point in the last year of his toilsome life. At South Danvers, Bridgewater, Fiskdale, Winchester, Beverly, Hartford, and elsewhere, he raised his voice or used his warm and loving heart for precious souls, in ways that will never be forgotten. His crown in heaven will be bright with stars won in those months of vain search for health. And this work was ever a joy to him, and he thanked God for his part in it.

While in the hospital at Boston, he told in sadness of his disappointments in efforts at Christian activity,—of his going to a place in Vermont where was such need of religious endeavor that "even he could do something for Jesus," and of his being taken ill on the very day of his arrival there, and thus prevented raising his voice for the Master. "And so it has often been," he added, regretfully. "I don't know whether I've learned the right lesson from all this; but this is what it seems to me God is teaching me by these disappointments: It is a blessed privilege to work for Jesus. Jesus didn't need me in Vermont. He has never needed me anywhere; but he has let me work for him sometimes. Oh, if I ever get well enough to work for him again,

won't I be thankful for it!" Would to God that all Christians had learned this lesson as well!

ONLY WAITING.—REST AT LAST.

At length the prolonged struggle drew towards its close. Early in May last, Manning—told by the physicians in a water-cure establishment, where he had been spending some months, that nothing more could be done for him with hope—turned his steps for the last time to his Warwick home. He still had hope of recovery, for he had passed so many perils safely that he could hardly realize there was any death for him; but he was now more resigned to inaction, in the same trustful love of Jesus and his cause. "I know that my Saviour will take care of me," he wrote: "I don't *think* it, I *know* it! I haven't the slightest doubt of it. He never manifested himself to me more wonderfully than he has of late; never satisfied the cravings of my heart more, or filled my soul more full! And I believe I never had so much love for him, or loved to speak of him to others, so well, as at the present time!" But he added, "It is not my business to think whether I am to live or die, but, rather, how I can best serve Christ. I want to do any thing, and be any thing, and suffer any thing that he wants me to." So, as he lay down on his home-bed to die, he had learned his last lesson,—he could wait as well as work.

"He was not eager, bold,
Nor strong,—all that was past;
He was ready not to do,
At last, at last."

His faith grew firmer as his flesh failed, and the less he could himself do, the more he was ready to trust God to do for him. On one occasion, when it seemed as if his hour of death had come, his sisters who were nearest were all summoned to his bedside, and just then two other sisters came in unexpectedly,—one from Boston, the other from Wisconsin,—while a friend whom he had particularly desired to see again, also visited him. For the first time in several years the family were all together at home. This moved Manning to profoundest gratitude to God, and he repeatedly referred to it in this spirit, telling over the story of recent blessings secured to himself and

his loved ones, as though he had just pride in the power and goodness of his heavenly Father, who had done all this for his comfort. Again, when he was pressed for means to supply his daily necessities, a sister came to him one morning to say that a letter had been received covering a gift of thirty dollars for his use. A pleasant smile came over his face as he responded, "I prayed for money last night. It was the first time I had asked for that in a good while."

There were long and weary weeks for him of final trial in racking pain—the whole inner system destroyed by the foul air of swamp and dungeon, and the scant or vile food of stockade and jail, while the still young and naturally vigorous outer man refused to be yet wholly crushed. There were dreams of prison-life, hunger and thirst ever unsatisfied; and seasons of agony in struggle for breath, as with slow, wasting flesh, and cold, clammy brow, the patient sufferer whispered with livid lips, in unflinching trust, "I want nothing; I wish for nothing; I hope for nothing: I only wait," until death brought relief and rest on the evening of Friday, Sept. 4, 1868. Two days later, his remains were borne out by loving hands from the church where, seven years before, that very month, he had stood up to witness for Jesus before going out to face death at the call of God, and tenderly laid away under the green turf of the neighboring hill-side cemetery, close by the tasteful granite shaft which stands "In Memory of Warwick's Soldiers who fell in the War of the Great Rebellion."

CLAIMS OF THE DEAD ON THE LIVING.

And thus the earthly warfare of another brave soldier is concluded. His was a noble work,—a work for others; for his fellows, his country, his God. "Greater love hath no man than this, that a man lay down his life for his friends." Henry Manning "hath done what he could" for the interests dear to the hearts of the Union soldiers. It is for those who survive him to hold sacred, and to guard jealously the principles and privileges—the supremacy of the Federal Government; the integrity of the national Union; the just liberties of the people of the Republic; the protection in their every right of all its citizens; the execution of the laws, and the inviolability of the national

faith—for which he and so many other soldiers battled, endured, and prayed, and gave or risked their lives.

And the faith of Henry Manning should be deemed yet more admirable and holy than his work. His work was heroic: his faith was sublime! It was because of his faith in that Saviour who died for him, and was an ever-present help in all his needs, that he went out as a soldier, and endured unto the end so bravely. "He fought a good fight" because he "kept the faith." "Through faith" he "escaped the edge of the sword; out of weakness was made strong, waxed valiant in fight," "had trial ... of bonds and imprisonment, ... being destitute, afflicted, tormented," and out of all "obtained a good report;" and finally has "gotten the victory," and received "a crown of glory that fadeth not away."

Surely in view of his faith and his faithfulness, and of the cause for which Henry Manning lived and gave his life, it behooves the lovers of their Country and of the Cross, to "hold such in reputation, because, for the sake of Christ, he was nigh unto death, not regarding his life to supply their lack of service."

Cambridge: Press of John Wilson and Son.

TRANSCRIBER'S NOTES:

Inconsistencies in spelling and hyphenation have been retained from the original.

Punctuation has been corrected without note.

Obvious typographical errors have been corrected as follows:

Page 16: stanch has been changed to staunch

*** END OF THE PROJECT GUTENBERG EBOOK THE CAPTURED
SCOUT OF THE ARMY OF THE JAMES ***

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are

located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, "Information about donations to the Project Gutenberg Literary Archive Foundation."
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.
- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project

Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to

you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a) distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the

efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment

including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a

copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility:
www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.